

Freight Services Agreement — Dominion Freight Carriers Ltd.

1. Parties

This Freight Services Agreement ("Agreement") is entered into between Acme Distribution Inc. ("Customer") and Dominion Freight Carriers Ltd. ("Carrier"), effective as of January 1, 2024.

2. Services

Carrier shall provide truckload and less-than-truckload freight services for Customer's outbound shipments from its Mississauga, Ontario distribution centre, in accordance with the rates set out in Schedule A.

3. Term

This Agreement shall commence on the Effective Date and continue for an initial term of thirty-six (36) months (the "Initial Term").

4. Renewal

Unless either Party provides the other with written notice of non-renewal not less than one hundred twenty (120) days prior to the expiration of the Initial Term or any Renewal Term, this Agreement shall automatically renew for successive twenty-four (24) month terms (each, a "Renewal Term") on the same terms and conditions then in effect, and Customer shall have no right to renegotiate rates during any such Renewal Term.

5. Rates and Fuel Surcharge

Base rates are set out in Schedule A and are subject to a monthly fuel surcharge adjustment published by Carrier. Rates in Schedule A shall otherwise remain fixed during the Initial Term.

6. Termination for Convenience

Except as set out in Section 4, neither Party may terminate this Agreement for convenience during the Initial Term or any Renewal Term.

7. Confidentiality

Each Party shall maintain the confidentiality of the other Party's proprietary information disclosed in connection with this Agreement, using at least the same degree of care it uses to protect its own confidential information.

8. Governing Law

This Agreement shall be governed by the laws of the Province of Ontario and the federal laws of Canada applicable therein.